

Indian Wireless Telegraphy (Experimental Service) Rules, 1962

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Union of India - Act

Indian Wireless Telegraphy (Experimental Service) Rules, 1962

UNION OF INDIA

India

Indian Wireless Telegraphy (Experimental Service) Rules, 1962

Rule INDIAN-WIRELESS-TELEGRAPHY-EXPERIMENTAL-SERVICE-RULES-1962 of 1962

Published on 11 August 1962

Commenced on 11 August 1962

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Indian Wireless Telegraphy (Experimental Service) Rules, 1962

Published vide Notification Gazette of India, 1962, Part 2, Section 3(i), p. 1276.

1721.

G.S.R. 1164, dated the 11th August, 1962. - In exercise of the powers conferred by Sections 4 and 7 of the Indian Telegraph Act, 1885 (

13 of 1885

), and in supersession of all existing orders on the subject, the Central Government hereby makes the following rules for the conduct of wireless telegraph transmitting and receiving stations, in the Experimental Service, established, maintained or worked in India by persons licensed under the said Act, namely :-

1.

Short title and commencement.

- (i) These rules may be called the Indian Wireless Telegraphy (Experimental Service) Rules, 1962.

(ii)

They shall come into force with effect from the [date]

[Vide G.S.R. 29, dated 20.12.1962]

to be notified in Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires :-

(i)

"Experimental Service" means a service utilising radio waves in experiments with a view to the development of science or technique but does not include amateur service as defined in clause (i) of rule 2 of the Indian Wireless Telegraphy (Amateur Service) Rules, 1958.

(ii)

"Experimental licence" means a licence issued by the Central Government for a type of wireless telegraph transmitting and/or receiving stations in the Experimental Service.

(iii)

"Wireless telegraphy" or "radio-telegraphy" includes wireless telephony or radio-telephony.

3.

Necessity for licence.

- No person shall operate an experimental wireless telegraph station except under and in accordance with the terms and conditions of the appropriate licence under these rules.

4.

Categories of experimental licences.

- There shall be two categories of licences in the Experimental Service, namely :

(i)

Experimental Wireless Telegraphy Station Licence-Radiating.

(ii)

Experimental Wireless Telegraphy Station Licence-Non-Radiating.

5.

Application for licence.

- Every application for a licence, whether radiating or non-radiating shall be made to be Central Government in the appropriate form in Annexure I.

6.

Eligibility for licence.

- A person who

(a)

is a citizen of India:

(b)

is not less than 21 years of age; and

(c)

(if he is an applicant for a radiating licence), is in possession of a valid first, second or special class Radio Telegraph Operator's Certificate and licence or a non-commercial Certificate of Proficiency/ Competency issued by the Central Government or by the Director General, Posts and Telegraphs or has passed the examination for Amateur Station Operator's Certificate Grade I, as the case may be;

shall be eligible for a licence : -

Provided that,

(i)

the applicant has in view some definite object of scientific value or public utility or research,

(ii)

the Central Government may grant a licence to nationals of foreign countries subject to such conditions as it may determine;

(iii)

applications from bona fide experimenters between the ages of 16 to 21 years may ordinarily be considered for the grant of non-radiating licence if they are accompanied by a certificate from the Head of the educational institution attended by the applicant or from his legal guardian that the applicant is interested in the conduct of experiments in radio technique.

(iv)

the apparatus is capable of being worked under the conditions of the licence.

(v)

the Central Government may relax the conditions under clause (c) in cases where it is satisfied that the conduct of experiments does not call for imposition of these conditions.

7.

Grant of licence.

- Every licence, Radiating or Non-Radiating shall be in the form in Annexure II.

8.

period of validity.

- A licence granted under these rules, shall normally be valid up to the 31st December of the year in which it is granted : Provided that a licence issued between the 1st November and 31st December of any year shall be valid up to the 31st December of the following year.

9.

Fee.

- A fee of Rs. 15 per annum shall be payable for each station covered by the licence whether Radiating or Non-Radiating. The fee shall be paid to the Central Government on receipt of instructions from that Government and in the manner directed by it :

Provided that the Central Government may by order and for reasons to be recorded in writing remit the whole or part of such fee in cases where it thinks fit to do so.

No holder of a licence shall be entitled to a refund of fees paid therefor on the ground of his inability to make full use of the licence or on its cancellation by the Central Government.

10.

Renewal of licence.

- A licence may be renewed for one for one year at a time on payment of a fee of Rs. 15 per station. An application for renewal shall be made at least one month before the expiry of the licence and the fee shall be paid along with the application. It shall not be obligatory for the Central Government to send a notice to licensee to pay the renewal fees.

11.

Loss of licence.

- In the event of loss of a licence, the licensee shall immediately send a report to the Central Government of the loss and circumstances in which the licence was lost.

12.

Duplicate licence.

- Where a licence is lost, a duplicate licence may be granted on payment of a fee of Rs. 5:

Provided that the Central Government may by order and for reasons to be recorded in writing remit the whole or part of such fee in cases where it thinks fit to do so.

13.

Cancellation of licence.

- A licence may be cancelled, if

(1)

the licence is lost on account of the negligence of the licensee, or

(2)

the licensee requests for the cancellation of his licence, or

(3)

the licence has not been renewed, or the renewal fee not paid within the prescribed time, or

(4)

the Central Government is not satisfied with the maintenance or operation of the equipment covered by the licence :

Provided that, before cancelling a licence, the licensee shall be given an opportunity to make his objections.

14.

Transfer of licence.

- A licence shall not morally be transferable; but the Central Government may permit the transfer of a licence, whether Radiating or Non-Radiating granted to the Head of any educational institution in favour of his successor in office.

15.

Operate of Station.

- (i) No person other than the licensee shall operate an Experimental Wireless Telegraph Station :

Provided that, -

(a)

such station may be operated by any of the persons listed in the "Schedule of Operators" at Appendix I to the licence.

(b)

in the presence of the licensee or a person authorised by him, such station of any educational institution may be operated by the bona fide students of that institution.

(ii)

An Experimental Wireless Telegraph Station shall not enter into communication with an Experimental Station of another country without a specific authorisation from the Central Government to that effect.

16.

Surrender of licence.

- A licence which is cancelled or which has expired shall be surrendered to the Central Government.

17.

Penalty for breach of these rules.

- Any breach of these rules other than a breach which is an offence under Section 20 or Section 21 of the Indian Telegraph Act, 1885, shall be punishable with fine, which may extend.

(i)

when the person is licensed under the Indian Telegraphs Act, 1885, up to one thousand rupees and in the case of a continuing breach a further fine of two hundred rupees for every day after the first during the whole or any part of which the breach continues;

(ii)

when a servant of the person so licensed or another person is punishable for the breach, to one-fourth of the amounts specified in clause W.

Annexure I

Application For A Licence To Establish, Maintain And Work An Experimental Wireless Telegraph Station

(See Rule 5)

1. Name of applicant (in Block Letters)

Address

Age

Occupation

Nationality

(Evidence of nationality in case of foreign nationals should be enclosed).

Father's name and Home Address

(NOTE. - Two written references as to character of the applicant should be enclosed.)

2.

I. Scientific/technical qualification (if any) of applicant :

(a)

Experience in working wireless telegraph apparatus;

(b)

Certificate /Certificates of proficiency /competency as Wireless Operator held by applicant;

(c)

Speed at which applicant can send and receive in the Morse Code:

II. Other particulars :

(a)
Particulars of previous applications, if any, made for Experimental Licence, with results :

(b)
Particulars of any other wireless licence held :

3. Type of licence applied for :
Experimental Wireless Telegraphy Station licence (Radiating):
Experimental Wireless Telegraphy Station licence (Non-Radiating) :

4. Purpose and nature of experiments for which licence is required.
Also state, if the licence is required for Educational institutions, the name of the institution, the type of experiments, names of supervisors/ demonstrators/lecturers etc. If the licence is required for radiating condition, the names of the operators, their qualifications etc. should be annexed to this application.

5. Particulars of apparatus to be used : (Circuit diagram for each type of equipment to be furnished with the application).

(a)
Transmitting :
Frequency range :
Power output :
Type of emission :
Quantity (Nos.) :
Type No. :
Manufacturer's name :
Source from which obtained :
Any other particulars :

(b)
Receiving :
Frequency range :
Selectivity :
Sensitivity :
Quantity (Nos.)
Type No. :
Manufacturer's name :
Source from which obtained :
Any other particulars :

(c)
Antenna :
(Type, Sketch, dimensions and means of support)

(d)
Particulars of dummy load (non-Radiating)
(See note below).

NOTE. - For an Experimental Wireless Telegraph Station (Non-Radiating Condition) it is obligatory to use a shielded enclosure in which the experiments shall be conducted to avoid radiation outside the enclosure. Dummy load shall be employed with accurate matching to reduce possibility of radiation from the equipment.

6. (i) Power in watts to be used for transmitting (A) @

(ii)
Maximum watts at the input of the Aerial

(iii)
Source of power supply (B) @

(a)
Measured at input :
VoltsAmperes.....

(b)
D/C or A/C

- (c)
Cycles per Second A/C
NOTE. - (A) Power is measured at the input to the anode circuit of the final RF amplifier.
NOTE. - (B) If batteries are used, state kind :
Primary Cells :-
State voltage
Secondary Cells :-
State capacity and discharge rate
Local Generator :-
Max. power available, type of current A/C or D/C. Periodicity in case of A/C.
*Commercial Mains :-
Power source, max power available voltage, type of current A/c or D/c. Periodicity in case of A/C.
7. Exact location of station (s) :
state full postal address (es) :
8. Frequencies desired for Transmitting :
.....Kc/s/Mc/s
.....Kc/s/Mc/s
.....Kc/s/Mc/s
Receiving :Kc/s/Mc/s
.....Kc/s/Mc/s
.....Kc/s/Mc/s
.....Kc/s/Mc/s
9. Particulars of shielding proposed to be employed (Non-Radiating) :
10. Type of emission and bandwidth :
11. Fixed or Mobile : .
12. Stations with which it is desired to communicate :
13. Area over which the experiments are to be conducted :
14. Hours of working desired (I.S.T) :
15. Details of frequency measuring equipment :
Declaration
I undertake to observe the conditions imposed for the grant of the licence and such other conditions as may be imposed subsequently and hereby certify that the apparatus herein described can and will be worked in accordance with the provisions of the Indian Wireless Telegraphy (Experimental Service) Rules, 1962. The installation shall not be made accessible to any un-authorised person at any time.
Signature of applicant.....
Date
Declaration to Observe Secrecy
I do solemnly and sincerely declare that I will not, without authorisation, divulge to any person the purport of any message, other than a message intended for the general use of the public, which I may transmit or receive by means of radio-telegraph or radio-telephone apparatus operated by me or which may come to my knowledge in connection with the operation of the said apparatus.
Place :.....
Witness :.....
Signature of Applicant :.....
Date
Declaration from the Head of the Institution or The Guardian for Applicants between 16 to 21 years of age
It is certified that Shri(Name of the applicant) is desirous of conducting experiments in wireless telegraph.
Signature :
Full Name :
Address :
Relationship with the applicant :

This application together with the enclosures if any, should be forwarded to the Wireless Adviser to the Government of India, Ministry of Transport and Communications (Deptts. of Commns. and Civil Aviation), New Delhi.

A fee of Rs. 15 per station may on demand be deposited with the Reserve Bank of India where its branches are located or in the nearest Government Treasury or in a branch of the State Bank of India or in a Treasury authorised to transact business on behalf of the Central Government, under the account head "LII-Miscellaneous Receipts of the Wireless Planning and Coordination Organisation-Licence Fee".

Annexure II

(See rule 7)

State Emblem

Government of India Ministry of Transport and Communications

(Departments of Communications & Civil Aviation)

Licence No.

Dated

Indian Telegraph Act, 1885

Licence to establish, maintain and work an Experimental Wireless Telegraph Station in India.

(Name and address of person or institution) of (hereinafter called "the licensee") is/are hereby authorised to establish, maintain and work a wireless telegraph station for the purpose of.....at.....and/or any location specified in Appendices II and III (hereinafter called "the station") subject to the conditions attached to this licence and the payment at Rs. 15 per annum per station.

The licence is granted under the authority of Section 4 of the Indian Telegraph Act, 1885.

The licence is governed by the Indian Wireless Telegraph (Experimental Service) Rules, 1962.

Particulars of the Licence

(i)

Type of licence (Radiating or non-radiating)

(ii)

Location of the Station /Stations

(iii)

Call Sign/Signs

(iv)

For other details see Appendices 1,11 and/ or III.

Issued by the Government of India.

Wireless Adviser to the Government of India, Ministry of Transport and Communications (Deptts. of Commns. & Civil Aviation) New Delhi, dated the

Instructions

Renewal of Licence. - The fees for the renewal, at Rs. 15 per station per annum, should be deposited in the Reserve Bank of India where its Branches are located or in the nearest Government Treasury or in a Branch of the State Bank of India or in a Treasury authorised to transact business on behalf of Government, under the account head "LII-Misc. Receipts of the Wireless Planning and Co-ordination Organisation-Licence Fees".

Change in address and other particulars of the licence. - Any change in location/location(s) or other particulars specified in the licence should immediately be brought to the notice of the Government of India.

The licence is subject to withdrawal or modification at any time either by specific notice in writing sent or delivered to the licensee at the address shown in the licence or by means of a general notice by the Central Government in the official gazette addressed to all holders of such licences.

The licensee may not assign, under-let or otherwise dispose of or admit any person to participate in the benefits of this licence.

The licensee shall not use or allow the station/station(s) to be used for any purpose other than that described in this licence.

Conditions common to experimental wireless telegraph station-Radiating-Non-radiating

I. Type of emission, frequencies, power and aerial system. - Only the type of emission(s), frequency(ies), power [measured at the anode(s) of the valve(s) delivering power to the aerial circuit] and aerial system specified in this licence and/or in its appendices shall be used. In case of non-radiating condition the power shall be measured at the input to the

dummy load.

The use of "spark" sending apparatus and of unrectified or inadequately smoothed rectified alternating current is specifically forbidden.

II. Frequency Control and measurement. - The sending apparatus shall invariably be tuned to the authorised frequency(ies) on which it is proposed to send; such frequencies shall not vary outside the frequency tolerance limit specified in the Radio Regulations for the frequency band concerned. Reliable frequency measuring equipment should be employed for measurement of frequency. For the transmitting equipment which is not crystal controlled, frequency measuring equipment shall be crystal controlled.

III. Operation and access to transmitting apparatus. - (a) The apparatus shall in all cases be operated by personnel specifically authorised by the Central Government (see Appendix I); provided that in the case of stations established in educational institutions the apparatus may be operated by its bona fide students under the supervision of the persons (s) authorised by the licensee.

(b)

Whenever the station is working under radiating condition an operator holding a valid certificate of Proficiency /Competency must be present.

(c)

It is the responsibility of the licensee to ensure that the operator(s) always observes(s) the conditions of the licence and that access to the apparatus cannot be obtained by unauthorised persons at any time.

IV. Secrecy of Correspondence. - If any message which the licensee is not entitled to receive is unintentionally received the licensee shall not make known its contents, its origin or destination. its existence or the fact of its receipt to any person and shall not produce in writing, copy or make any use of such message or allow the same to be reproduced in writing, copied or made use of for the proposes listed above.

Provided that any legitimate disturbance to the operation of the station or any infringement of the Radio Regulations or International Telecommunication Coventions in force if observed, may be reported forthwith to 'the Central Government.

V. Log. A running record shall be kept in a book of approved type (not losse-leaf) of all transmissions/experiments chronologically showing the date and time of each transmissions/experiment and an indication of the signals or words used or the results obtained together with the frequency and the type of emission employed in the transmission/experiment. Gaps shall not be left between the entries in the log-book. The log-book shall in all cases be initialled by the operator making the transmission/experiment. Erasures and/or intercepted writings should be avoided. (The log should be maintained in the proforma shown in Appendix IV.)

VI. Call Signal. - The call signal allotted to the station shall invariably be sent in full either by morse telegraph at a speed not greater than 20 words per minute or telephonically under both Non-Radiating and Radiating conditions. The call-signal shall be sent three times consecutively at the commencement of the transmission and for any transmission exceeding 15 minutes shall be repeated in the same manner at the commencement of each succeeding period of 15 minutes and at the conclusion of the transmission. When calling up another station the call signals of the called and the calling station shall be sent three times. In answering a call the call signal of the calling station shall be sent three times and the call signal of the answering stations once. The call signal of the two stations shall be separated by the "de" in the case of telegraphy transmissions and "from" in the case of telephony transmissions. The call signal of the sending station shall also be sent at every occasion when the frequency is changed. In exceptional circumstances where the call signal cannot be sent the Central Government may agree to waive this condition. The use of the general call "CQ" is expressly forbidden.

VII. Non-interference. - The station shall be used in such a manner as not to cause any interference with other stations. The arrangement employed for "keying" the transmitter shall be such as to ensure that the risk of interference due to key clicks being produced in neighboring apparatus is reduced to a minimum.

VIII. Aerials. - The aerial used shall be that as authorised in the licence. However, the dimensions and location of the aerial should be such that they do not cause any hazard, or get affected by the adjacent power or telecommunication lines. An aerial which crosses above or is liable to fall upon or to be blown on to any overhead power line (including electric lighting and tramway wires) shall be guarded to the reasonable satisfaction of the owner of the power wire concerned.

If the station is situated within half a mile of the boundary of any aerodrome, the height of the aerial above the ground level shall not exceed 50 ft. or as per rules or directives issued by the Civil Aviation Department from time to time.

IX. Propaganda. - The station shall not be used for social, or political propaganda of any other type whatsoever.

X. Broadcast Reception. - This licence does not cover the reception of broad-cast programmes for which a separate broadcast receiver licence of the appropriate category must be obtained.

XI. Legal obligation of the licence. - Nothing contained herein shall be deemed to relieve the licensee of any responsibility for any infringement of patent rights which may be incurred by the use of the licenced apparatus. The licence shall indemnify the Central Government against all actions, claims and demands which may be brought or made by any person, body corporate or company in respect of any injury arising from any act licensee or permitted by this licence.

XII. Inspection. - The station covered by this licence. (which shall be subject to the approval of the Central Government) together with the record of transmissions and this licence, shall be open to inspection whenever transmissions/experiments are taking place all at other reasonable times by officers duly authorised for that purpose by any person authorised by the Central Government.

XIII. Portable stations; operator's credentials. - When the use of a portable transmitter is authorised, the operator responsible for the working thereof shall have in his possession this licence, which must be produced, on demand, for inspection by any person authorised by the Central Government.

XIV. Control in emergency. - If and whenever in the opinion of the Central Government it is expedient that the Central Government shall have control over the sending of messages by means of the station covered by this licence, it shall be lawful for the Central Government to direct and cause the station to be taken possession of in the name and on behalf of the Central Government and to prevent the licensee from using it and for these purposes to cause any part of or all the apparatus forming the station to be removed to such place as they may think fit and any person authorised by the Central Government may from time to time enter the premises at which the station is maintained for any such purposes as aforesaid.

The licensee shall not be entitled to any compensation in respect of the exercise by the Central Government of the powers conferred by this condition which shall remain in force notwithstanding the withdrawal or modification of the licence.

XV. Determination of Licence. - When this licence is determined it must be returned to the Wireless Adviser to the Government of India, Ministry of Transport and Communications, (Deptts. of Communications and Civil Aviation), New Delhi.

Special Conditions For Experimental Wireless Telegraph Station-Non-Radiating Condition

1. The licensee shall, whenever so licensed, endeavour at all times to operate under non-radiating condition and such transmissions may be made at any time and on any frequency authorised in Appendix II.

The apparatus must be such that radiation therefrom will not perceptible outside the enclosure in which the apparatus is installed and no attempt shall be made to send signals to other stations. The transmitting apparatus must be located in an effectively screened enclosure and its aerial output circuit shall be connected to an "Artificial Aerial" whenever possible, so as to confine the radiation within the shielded enclosure. All electric and other wires led into the screened enclosure should be connected through filters to earth so as to suppress any radio frequency currents being conveyed through them to outside. By "Artificial Aerial" is meant a closed, non-earthed circuit arranged as nearly as possible non-radiating as possible. Any inductance should be in one piece and of small dimensions (as distinct from an inductance of large dimension such as frame aerial). No outside aerial, whether intended for transmission or reception will be led into the screened enclosure, nor will any arrangement by which radiations generated in the screened enclosure may be connected to an outside aerial system, be permitted. The transmitting set shall be permanently located in the screened enclosure and shall not be removed outside it for any purpose whatsoever. Failure to prevent perceptible radiations beyond the enclosure in which the apparatus is situated, will render this licence liable to be cancelled.

Special Condition For Experimental Wireless Telegraph Station-Radiating Condition.

When so licensee, the licensee shall radiate transmissions only authorised frequencies specified, in Appendix III and only at the times and for the period situated therein.

Appendix I

Licence No.

Name of Licensee

Date

Call Sign

Of Authorised Operators

Sl. No.

Name

Qualification

*Certificate License No.

Remarks

* To be filled in only in case of Licence for Experimental Wireless Telegraph Station (Radiating).

Appendix II

Licence No.

Name of Licensee

Date

Call Sign

Particular Of Authorised Operations Under Non-Radiating Condition

Sl. No.

Equipment

Allotted Frequencies

Rated Power Output

Type of Emission

Period

Purpose for which authorised

Remarks

From

To

Appendix III

Licence No.

Name of Licensee

Date

Call Sign

Particulars Of Authorised Transmission Under Radiating Conditions.

Sl. No.

Equipment

Allotted Frequencies

Type of Emission

Period

Maximum Power Output

Aerial System

Purpose for which authorised

Remarks

From

To

Appendix IV

Proforma of Log

Date

Time

Frequencies

Type of Emission

Brief details of equipments

Test of messages, if sent

Remarks

Signature of Operator

[Ministry of Transport and Communication No. W-20(21)/58]

Related AI tags, queries and research notes

Translation